TENTATIVE RULINGS

DEPT W15

JUDGE RICHARD Y. LEE

Date: September 03, 2026

Civil Court Reporters: The Court does not provide court reporters for law and motion hearings. Please see the Court's website for rules and procedures for court reporters obtained by the Parties.

Submitting on the Tentative Ruling: If ALL counsel intend to submit on the tentative ruling and do not wish oral argument, please advise the Court's clerk or courtroom attendant by calling (657) 622-5915. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give Notice of Ruling and prepare an Order for the Court's signature if appropriate under CRC 3.1312. **Do not call the department unless ALL parties submit on the tentative ruling.**

Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or whether the tentative ruling shall become the final ruling. The Court interprets a party's failure to appear at the hearing as a waiver of oral argument.

Remote Appearances: Department W15 permits non-evidentiary proceedings, including law and motion, to be conducted remotely. *If you are appearing remotely*: (1) all counsel and self-represented parties appearing for such hearings **must,** prior to 1:30 p.m. on Thursday, check-in online via the Court's civil video appearance website (link here); and (2) participants will then be prompted to join the courtroom's Zoom hearing session.

Local Rule 375(c): Attorneys **shall** comply with Local Rule 375(c) which governs "Decorum for In-Person and Remote Court Appearances." (Local Rule 375(c)) Specifically, the video and audio must be turned on and functioning during the hearing; and attorneys are expected to wear appropriate business attire.

#		
100	Palmer vs. Holmes 23-01362888	Plaintiff James Palmer ("Plaintiff") moves to compel defendant Warren Holmes ("Defendant") to serve further responses without objections to the first set of Special Interrogatories served on August 8, 2025 and for an order imposing monetary sanctions against Defendant in the amount of $12,331.50. The Court declines to consider Defendant's untimely opposition, which was filed only six court days before the hearing date, as Defendant's dilatory conduct denied Plaintiff a reasonable opportunity to prepare a reply.

		Plaintiff seeks to compel further responses to the Special Interrogatories, arguing that Defendant's initial and supplemental responses contain waived objections and improperly rewrite, renumber, or reframe the interrogatories actually served. Defendant failed to serve timely initial responses. Thus, any objections have been waived. (Code Civ. Proc., § 2030.290(a).) The fact that Defendant's initial and supplemental responses contain objections alone warrants further responses. The Court finds sanctions to be warranted pursuant to Code of Civil Procedure section 2030.290(c). In light of the above, the Motion to Compel Further is GRANTED. Defendant is ORDERED to serve further, verified responses without objections to Plaintiff's first set of Special Interrogatories within 15 days. Defendant is further ORDERED to pay sanctions in the amount of $2,000 within 30 days. *Moving party to give notice.*
102	Chan vs. BrandRep LLC, 25-01532021	*Off-Calendar*.
103	Weaver vs. Architectural, Inc., 23-01316480	Defendants, Sebastian Ernesto Amighini and Karina Andrea Cuevas (collectively, "Defendants"), move for an order to set aside the entries of default and any default judgments as void for lack of personal jurisdiction due to absence of valid service. Defendants contend that the Court never acquired personal jurisdiction over them and that the defaults and default judgment are void for lack of proper service under Code of Civil Procedure section 473(d) as Plaintiffs failed to satisfy the reasonable diligence requirements in the Hague Convention Article 1 and Code of Civil Procedure section 415.50, such that service by publication was not proper on Defendants who resided in Argentina and Defendants were not served in accordance with California law or the Hague Evidence Convention. Plaintiffs, Greg Weaver and Haig Youredjian (collectively, "Plaintiffs") contend that Defendants were properly served with the summons by publication and that the entries of

		default and default judgment against Defendants are not void for lack of personal jurisdiction due to lack of service as Defendants fail to establish that service under the Hague Service Convention was required, while Plaintiffs have affirmatively established their reasonable diligence in attempting to locate current service addresses for Defendants and their absence of a known service address during the service period. On October 14, 2025, default was entered as to Defendant, Karina Andrea Cuevas (ROA 223) and as to Defendant, Sebastian Ernesto Amighini (ROA 224). Default judgment was entered against Defendants, amongst other defendants, jointly and severally, on January 22, 2026. (ROA 261.) Defendants’ motion to set aside and/or vacate defaults and default judgment is GRANTED. *Plaintiffs’ Request for Judicial Notice* Plaintiffs’ request that the court take judicial notice of Plaintiffs' Application and Order for Publication of Summons to permit service by publication on Defendants (Exs. A and B), the Court’s Order granting Plaintiffs' Application and Order for Publication of Summons to permit service by publication on Defendants (Exs. C and D), and Architectural, Inc.'s Voluntary Petition for Non-Individuals Chapter 7 Bankruptcy in the United States Bankruptcy Court, Central District of California, Santa Ana Division, filed on or around September 10, 2024 (Ex. E). Plaintiffs’ request for judicial notice is GRANTED pursuant to Evidence Code section 452(d), but the Court declines to take judicial notice of the truth of hearsay statements therein. *Plaintiffs’ Objections* Evidentiary Objections to the Declaration of Sebastian Ernesto Amighini The Court OVERRULES Objections Nos. 1-5, 7-11. The Court SUSTAINS Objection Nos. 6, 12. Evidentiary Objections to the Declaration of Karina Andrea Cuevas

		The Court OVERRULES Objections Nos. 1-8. *Plaintiff to give notice.*
104	CARDCONNECT, LLC vs. SHIELDS, 20-01150194	Defendant Jeffrey S. Benice ("Defendant") moves to dismiss the First Amended Complaint of Plaintiff CardConnect, LLC ("Plaintiff") pursuant to Code of Civil Procedure sections 583.310 and 583.360. Defendant argues Plaintiff has failed to bring this action to trial within five years since its commencement. Defendant contends that the stay imposed upon receipt of Plaintiff's Notice of Stay of Proceedings Re: Bankruptcy does not toll the five-year period because Plaintiff was obligated to exercise reasonable diligence in requesting that the stay be lifted as to the defendants who had not filed the bankruptcy petition, and was advised on May 23, 2024 that a motion to list the stay could be filed, and Plaintiff failed to act. "An action shall be brought to trial within five years after the action is commenced against the defendant." (Code Civ. Proc., § 583.310.) "As to a defendant either expressly named in the original complaint, or named in the original complaint by a fictitious name, the action commences on the date of the filing of the complaint. [Citation.] But when a new party is added to the action, the action commences as to that party on the date of the order adding him or her as a party or on the date of filing of the pleading naming him or her as a new party." (*Gray v. Firthe* (1987) 194 Cal.App.3d 202, 209; *see also Seto v. Szeto* (2022) 86 Cal.App.5th 76, 95, fn. 5 ["The five-year period is calculated separately for each defendant."].) Defendant cites to *Rosefield Packing Co. v. Superior Court* (1935) 4 Cal.2d 120 to argue that the five-year period runs from Plaintiff's filing of the initial complaint rather than the first amended complaint. In *Rosefield*, the California Supreme Court held that, despite the filing of an amended complaint by stipulation of the parties, the five-year time period ran from when the original complaint was filed. (Id. at pp. 124-125.) The Court did not consider whether a new five year period is triggered if an amended complaint adds a new defendant. Thus, *Rosefield* cannot stand for the proposition that an amended complaint which adds a new defendant does not trigger a new five year period as to

		that defendant. (*Wishnev v. The Northwestern Mutual Life Ins. Co.* (2019) 8 Cal.5th 199, 217.) Further, *Rosefield* was decided based on former section 583, which was repealed in 1984 and replaced by a new statutory scheme. As held in *Gray*, "changing the operative phrase from 'within five years after the plaintiff has filed his action' (former § 583, subd. (b)) to 'after the action is commenced against the defendant' (new § 583.310) manifests a clear intent to change the law." (194 Cal.App.3d at p. 208.) Thus, even if *Rosefield's* holding may be interpreted to mean an amended complaint would not trigger a new five year period against a new defendant under repealed section 583, *Gray* makes it clear that such a filing does trigger a five year period as to a new defendant under section 582.310. Defendant here was not named in this action until the FAC was filed on November 17, 2022. Five years from that date is November 17, 2027, a date which has not passed and is more than a year from the date of this hearing. Accordingly, Defendant's Motion to Dismiss on this basis is DENIED without prejudice. *Moving party to give notice*.
105	Detmers vs. Cancellieri, 25-01532289	Plaintiff, Brett Detmers ("Plaintiff"), moves for an order directing service of summons on Defendant, Jack Augustine Cancellieri ("Defendant"), by publication in a newspapers in general circulation pursuant to Code of Civil Procedure section 415.50. The manner in which summons must be served in a civil action include (1) personal delivery to defendant (Code Civ. Proc. § 415.10); (2) substitute service by delivery to someone else at defendant's usual residence or place of business coupled with mailing (Code Civ. Proc. § 415.20); (3) service by mail coupled with acknowledgement of receipt (Code Civ. Proc. § 415.30); and (4) service by publication (Code Civ. Proc. § 415.50). (Weil & Brown, Cal. Practice Guide: Civ. Proc. Before Trial (The Rutter Group June 2025 update) ¶¶ 4:181, 4:184, 4:193, 4:225, 4:245.) "Section 415.10 et seq. governs the manner of service of a summons. A summons may be served by various methods. If service of a summons by other means proves

		impossible, service may be effected by publication, upon the trial court's approval. [Citation.] Section 415.50 governs this method of service." (*Rios v. Singh* (2021) 65 Cal.App.5th 871, 880 ("*Rios*").) Code of Civil Procedure section 415.50 states, in part: (a) A summons may be served by publication if upon affidavit it appears to the satisfaction of the court in which the action is pending that the party to be served cannot with reasonable diligence be served in another manner specified in this article and that either: (1) A cause of action exists against the party upon whom service is to be made or he or she is a necessary or proper party to the action. (2) The party to be served has or claims an interest in real or personal property in this state that is subject to the jurisdiction of the court or the relief demanded in the action consists wholly or in part in excluding the party from any interest in the property. (Code Civ. Proc. § 415.50(a).) Code of Civil Procedure section 415.50 also states: (b) The court shall order the summons to be published in a named newspaper, published in this state, that is most likely to give actual notice to the party to be served. If the party to be served resides or is located out of this state, the court may also order the summons to be published in a named newspapers outside this state that is most likely to give actual notice to that party. The order shall direct that a copy of the summons, the complaint, and the order for publication be forthwith mailed to the party if his or her address is ascertained before expiration of the time prescribed for publication of the summons. Except as otherwise provided by statute, the publication shall be made as provided by Section 6064 of the Government Code unless the court, in its discretion, orders publication for a longer period. (Code Civ. Proc. § 415.50(b).) "As a condition of establishing that the party to be served cannot with reasonable diligence be served in another manner specified in this article, the court may not require

		that a search be conducted of public databases where access by a registered process server to residential addresses is prohibited by law or by published policy of the agency providing the database, including, but not limited to, voter registration rolls and records of the Department of Motor Vehicles.” (Code Civ. Proc. § 415.50(e).) “The Judicial Council comment to this section is instructive in defining the showing required before a trial court is justified in finding a party has exercised reasonable diligence in attempting to locate the party to be served. ‘The term “reasonable diligence” takes it meaning from the former law: it denotes a thorough, systematic investigation and inquiry conducted in good faith by the party or his agent or attorney. [Citations.] A number of honest attempts to learn defendant's whereabouts or his address by inquiry of relatives, friends, and acquaintances, or of his employer, and by investigation of appropriate city and telephone directories, the voters' register, and the real and personal property index in the assessor's office, near the defendant's last known location, are generally sufficient. These are likely sources of information, and consequently must be searched before resorting to service by publication.’ [Citation.]” (*Kott v. Superior Court* (1996) 45 Cal. App. 4th 1126, 1133, 1137.) “However, the showing of diligence in a given case must rest on its own facts and ‘[n]o single formula nor mode of search can be said to constitute due diligence in every case.’ [Citation.]” (*Id.* at pp. 1137-1138.) “A number of honest attempts to learn the defendant’s whereabouts through inquiry and investigation generally are sufficient. [Citation.]” (*Rios, supra*, 65 Cal.App.5th at p. 880.) “A plaintiff must show such efforts because it is generally recognized that service by publication rarely results in actual notice. [Citations.]” (*Ibid*.) “Whether the plaintiff exercised the diligence necessary to justify resort to service by publication depends on the facts of the case. [Citation.] The question is whether the plaintiff took the steps a reasonable person who truly desired to give notice of the action would have taken under the circumstances. [Citation.]” (Id. at pp. 880-881.) Here, Plaintiff’s attorney provides that this matter arises out of a motor vehicle accident that occurred on September 19, 2024; that Defendant has automobile

		liability insurance through Farmers Insurance; that the address on Defendant's driver's license shows an address at: 2907 Braeholm Pl., Hermosa Beach, CA 90254; that two attempts to personally serve Defendant were made at this Hermosa Beach address on January 9, 2026, and January 11, 2026, which were not successful; that one attempt was made to personally serve Defendant at an address at: 521 ½ Acacia Ave., Corona Del Mar, CA 92625 on January 16, 2026, that was unsuccessful; and that one attempt was made to personally serve Defendant at an address at: 1845 Sabrina Terrace, Corona Del Mar, CA 92625 on January 20, 2026. (Declaration of Alexis Galindo, ¶¶ 3-4, 6-9, Exs. A-C.) Plaintiff's counsel also provides that notice of attempted service has been provided to Defendant's insurance carrier, Farmers Insurance, and that in performing a search of public records, no other current addresses have appeared. (Id., ¶¶ 5-6.) The foregoing attempts do not sufficiently demonstrate that Defendant cannot with reasonable diligence be served in another manner. Plaintiff shows that they made only two attempts to personally serve Defendant at the last known address for Defendant in Hermosa Beach, and Plaintiff appears to have made only one search of Lexis/Nexis Public Records to learn Defendant's whereabouts. Although some effort has been made, these efforts do not reflect the steps a reasonable person who truly desired to give notice of the action would have taken under the circumstances. Plaintiff's Motion for Order of Publication of Summons is DENIED, without prejudice. The Case Management Conference is continued to November 19, 2026 at 1:30 p.m. *Plaintiff to give notice.*
106	Mangum vs. Defense International Corporation, 24-01371228	Plaintiff Armani Mangum ("Plaintiff") moves pursuant to Code of Civil Procedure sections 2023.010 and 2023.030 for an order imposing terminating sanctions against Defendants Defense International and Chaz McKinney. Specifically, Plaintiff asks the Court to strike Defendants' answer and enter default judgment against Defendants. Alternatively, Plaintiff asks the Court to strike Defendants' affirmative defenses and impose issues and/or evidence

		sanctions precluding Defendants from supporting or opposing designated claims or defenses and/or introducing designated matters in evidence. Despite proper service by mail and email, the motion is unopposed. Pursuant to Code of Civil Procedure section 2023.030, “the court, after notice to any affected party, person, or attorney, and after opportunity for hearing, may impose” certain “sanctions against anyone engaging in conduct that is a misuse of the discovery process.” Such misuses include but are not limited to “[f]ailing to respond or to submit to an authorized method of discovery” and “[d]isobeying a court order to provide discovery.” (Code Civ. Proc., § 2023.010(d) and (g).) Under Code of Civil Procedure section 2023.030(a), the “court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct.” (Code Civ. Proc., § 2023.030, subd. (a).) Under Code of Civil Procedure section 2023.030(d)(1), the court may also “impose a terminating sanction by . . . [a]n order striking out the pleadings or parts of the pleadings of any party engaging in the misuse of the discovery process” or “[a]n order dismissing the action, or any part of the action, of that party.” (Code Civ. Proc., § 2023.030, subd. (d)(1) and (d)(3).) A party’s repeated failure to “participate in the discovery process” and “failure to pay the monetary sanctions the superior court ordered” constitute grounds for terminating sanctions. (*Moofly Productions, LLC v. Favila* (2020) 46 Cal.App.5th 1, 12; *Liberty Mutual Fire Ins. Co. v. LcL Administrators, Inc*. (2008) 163 Cal.App.4th 1093, 1106 [holding the party’s persistent “pattern of failure or refusal to give meaningful responses to discovery” constituted grounds for terminating sanction]; *Mileikowsky v. Tenet Healthsystem* (2005) 128 Cal.App.4th 262, 280, as modified on denial of reh’g (May 4, 2005) [“Here the record is replete with evidence of Dr. Mileikowsky’s failures to answer discovery requests despite numerous extensions

sought and granted. Time and again, he refused to respond despite the issuance of court orders and monetary sanctions."].)

Terminating sanctions are inappropriate if the "imposition of a lesser sanction will serve to protect the legitimate interests of the party harmed by the failure to provide discovery." (*Thomas v. Luong* (1986) 187 Cal.App.3d 76, 81.) Even so, "where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction." (*Moofly Productions, LLC v. Favila* (2020) 46 Cal.App.5th 1, 12.) Under such circumstances, the trial court has "broad authority to levy the ultimate sanction when prior efforts yielded no results." (*Liberty Mutual Fire Ins. Co. v. LcL Administrators, Inc*. (2008) 163 Cal.App.4th 1093, 1105.)

Here, the Court finds that Defendants have repeatedly failed to participate in the discovery process and abide by the Court's orders regarding the same. Plaintiff has been attempting to obtain discovery from Defendants since March of 2025, which is now well over a year ago. Defendants have yet to (1) provide the outstanding and court-ordered discovery responses, (2) pay court-ordered monetary sanctions, and (3) meaningful participate in the case.

Defendants' counsel moved to be relieved as counsel and the Court granted this request on July 17, 2025. Now, over a year later, Defendants remain without counsel. Defendant Defense International is a corporation and must be represented by counsel. (*CLD Constr., Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141, 1150 ["[T]he court retains authority to dismiss an action if an unrepresented corporation does not obtain counsel within reasonable time."].)

Defendants have repeatedly failed to meaningful participate in this case for well over a year.

Defendants also did not oppose this motion and therefore proffered no evidence establishing otherwise. Based on the non-opposition, the Court may "deem [defendant] to have abandoned the issues" or "claims" addressed in the

		moving papers. (*Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 20.) The non-opposition is considered an implied concession to the merit of Plaintiff's arguments presented in the motion. (*Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 20; *DuPont Merck Pharmaceutical Co. v. Superior Court* (2000) 78 Cal.App.4th 562, 566, as modified (Jan. 25, 2000) ["By failing to argue the contrary, plaintiffs concede this issue."]; *Glendale Redevelopment Agency v. Parks* (1993) 18 Cal.App.4th 1409, 1424 [holding that "by failed to address" an issue, the issue is "impliedly concede[d]."]; and *Westside Center Associates v. Safeway Stores 23, Inc.* (1996) 42 Cal.App.4th 507, 529 ["Its failure to address the threshold question of intent effectively concedes that issue and renders its remaining arguments moot."].) Given the above, the Court finds that the requested terminating sanctions are appropriate under the circumstances. The Motion is GRANTED. Defendants' answer (ROA 19) is DEEMED STRICKEN. Plaintiff may seek entry of default forthwith and may prepare an appropriate default judgment prove-up package. *Plaintiff to give notice.*
107	Parker vs. Le, 24-01447835	<u>Motion to Consolidate</u> Defendants Nhi Xuan Le and Linda Nguyen (together, "Defendants") move to consolidate the two related matters, Parker v. Le, et al., Case No. 2024-01447835 (the "7835 Action"), and Parker v. Le, et al., Case No. 2025-01463080 (the "3080 Action"). For the following reasons, Defendants' motion is GRANTED. Defendants did not strictly comply with rule 3.350 because the notice of motion was not filed in the related 3080 Action, and the motion does not contain both captions. Although this constitutes a procedural defect, Plaintiff is the only party to both actions other than the moving parties, and Plaintiff filed an opposition (albeit, belatedly), in which she does not raise any objections to the procedural defects. Thus, no resulting prejudice has been

identified. The Court therefore addresses the merits notwithstanding the procedural defect.

The two actions concern disputes over the same two adjacent residential properties, and the parties are identical in both cases, except that in the 3080 Action, Plaintiff litigates in her capacity as “Successor Trustee and Sole Beneficiary of the Claudia Anne Parker Revocable Trust.” In the 7835 Action, Plaintiff appears in her individual capacity, although she alleges that the property is in a trust, and has filed a motion for leave to amend which, in part, seeks to change Plaintiff’s capacity to trustee. Both cases involve claims for negligence, private nuisance and property damage. However, the 3080 Action also includes allegations related to easement rights.

Plaintiff contends that the cases do not overlap, and therefore consolidation would not serve economy and convenience. She contends that the 3080 Action concerns issues with the front portion of the properties, while the 7835 Action concerns issues with the rear portion of the properties.

The Court finds that consolidation would conserve judicial resources, and reduce the risk of inconsistent rulings. Although the issues raised in the two cases are not identical, because they involve the same parties, same property, and similar causes of action, complete consolidation will streamline the litigation.

Defendants raise concern that Plaintiff is not able to prosecute these actions in pro per, as she apparently intends to pursue both actions in her capacity as trustee. Defendants urge the Court to set an OSC re: Dismissal regarding the matter. However, this issue is beyond the scope of a motion for consolidation. Further, citing *Aulisio v. Bancroft*, Defendants contend that a person who is "only the trustee and sole beneficiary of a revocable trust settled by someone else," and not the settlor, "could not purport to litigate trust matters in propria persona because the interests at stake in protecting the trust corpus would belong to the settlor." (*Aulisio v. Bancroft* (2014) 230 Cal.App.4th 1516, 1525.) Defendants have not provided any evidence that Plaintiff is not the settlor of the trust.

		Accordingly, the motion is GRANTED. The actions are consolidated for all purposes, with Parker v. Le, et al., Case No. 2024-01447835, designated as the lead case. Motion for Leave to File Second Amended Complaint Plaintiff Ana Christina Parker ("Plaintiff") seeks leave to file a Second Amended Complaint. However, on the deadline for Plaintiff's reply brief, Plaintiff instead filed a Notice of Lodging and Supplemental Declaration which purports to submit a revised proposed Second Amended Complaint. The revised proposed Second Amended Complaint was not attached to the supplemental declaration or notice of lodging. Further, the notice of lodging indicates that the revised proposed SAC "add[s] limited factual allegations and related requested abatement relief based on newly discovered information concerning wall-height limitations, wall-reconstruction requirements, and the feasibility of abating ongoing noise, privacy, wall, an access-related interference." (ROA 70 ¶ 3.) The Court cannot assess the merits of the motion without a copy of the proposed pleading. Further, CRC 3.1324 requires Plaintiff to provide a declaration regarding the proposed changes, and to include a redline of the proposed pleading, none of which has been done in connection with the revised proposed SAC. Finally, submitting the revised proposed SAC after Defendants have already filed their opposition unfairly deprives Defendants of a fair opportunity to respond to the proposed pleading. For all of these reasons, the motion is DENIED without prejudice. *Defendants to give notice of both orders*.
108	The Standard Fire Insurance Company vs. Milton Roy Company, Hartell Division, 25-01473457	Plaintiff The Standard Fire Insurance Company ("Plaintiff") moves to compel Defendant Viking Range, LLC's representative Michael Lacombe to appear for a deposition. Plaintiff also asks for monetary sanctions in the amount of $561.65 against Viking Range, LLC's attorney, Sierra J. Chinn-Liu, Esq., for the reasonable costs and fees associated with having to bring this motion. The Motion is made pursuant to Code of Civil Procedure section 2025.450, et seq. and 2023.030(a).

		Defendant Viking Range, LLC ("Defendant") opposes the motion. On 08/13/2026, the Court held a hearing on this motion. The Court ordered the following after the hearing: "The Court finds that whether Mr. Lacombe signed the verification to Defendant's discovery responses is of great significance to the issues presented in this motion. However, Plaintiff has not provided any admissible evidence that Mr. Lacombe signed a discovery verification in defense of this case. Plaintiff also did not provide admissible evidence that Mr. Lacombe appeared at destructive testing on Defendant's behalf. Plaintiff is ordered to file evidence establishing that Mr. Lacombe signed the verification on behalf of Defendant and any other evidence supporting Mr. Lacombe's role and/or responsibilities in relation to Defendant no later than 9 court days before the continued hearing. Defendant is permitted to file a 3 page reply in addition to evidence opposing Plaintiff's contentions no later than 5 court days before the continued hearing. If Plaintiff's statement is true, that Mr. Lacombe signed the discovery verification on behalf of Defendant in defense of this case, the Court strongly encourages the parties to work together to establish a mutually agreeable date to conduct Mr. Lacombe's deposition." (ROA 111.) On August 19, 2026, Plaintiff filed a supplemental declaration in support of the motion to compel the deposition of Michael Lacombe. In the declaration, Plaintiff's counsel attached the discovery responses provided by Defendant, which were verified by Michael Lacombe. The Court finds that such evidence supports Plaintiff's arguments that Defendant shall be required to produce Michael Lacombe for deposition. As such, the motion to compel Defendant Viking Range, LLC's representative Michael Lacombe to appear for a deposition is GRANTED. Defendant shall produce Michael Lacombe for his deposition on a mutually agreeable date, no later than 45 days following notice of this order.

		The request for sanctions is GRANTED in the amount of \$561.65 against Defendant Viking Range, LLC and Defendant Viking Range, LLC's attorney, Sierra J. Chinn-Liu, Esq., jointly and severally. Sanctions shall be paid within 30 days after notice of this order. *Plaintiff to give notice.*
109	Jafry vs. Rowshan, 23-01348716	Defendants Zoom Business Brokers ("Zoom") and Jim Moazez ("Moazez") (collectively, "Defendants"), seek an order granting summary judgment, or alternatively, summary adjudication, of the Complaint against Plaintiff Syed Jafry, dba R & R Accounting ("Plaintiff") and in favor of Defendants. (1) The undisputed material facts show that Plaintiff cannot establish Defendants' "intent to defraud," an element of fraud, barring Plaintiff's Second Cause of Action for Fraud; (2) The undisputed material facts show that Plaintiff cannot establish Defendants' "justifiable reliance on defendant's misrepresentation," an element of fraud, barring Plaintiff's Second Cause of Action for Fraud; (3) The undisputed material facts show that Defendants' Affirmative Defense No. 25, "Release, Indemnity, and Hold Harmless," bars Plaintiff's Fourth Cause of Action of Breach of Fiduciary Duty Initially, on summary adjudication, pursuant to CRC 3.1350(b), "[T]he specific cause of action, affirmative defense, claims for damages, or issues of duty must be stated specifically in the notice of motion and be repeated, verbatim, in the separate statement of undisputed material facts." [CRC 3.1350(b).] Here, the Notice of Motion and Separate Statement do not match verbatim. [ROA 117, 121.] Also, the separate statement does not list the issues to be adjudicated in numerical sequence; but rather, starts at number 1 for each issue. [CRC 3.1350(h).] Nevertheless, because there are only three issues for consideration, the Court will exercise its discretion and consider each issue.

		The moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. [*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850] A defendant moving for summary judgment must “show” that either: • one or more elements of the “cause of action … cannot be established”; OR • there is a complete defense to that cause of action. [CCP § 437c(p)(2)] Here, Defendant has presented arguments and evidence that one or more elements of the cause of action for Fraud cannot be established (intent to defraud, justifiable reliance) and that there is a complete defense to the cause of action for Breach of Fiduciary Duty (25th Affirmative Defense). As to fraud, Defendant explains that Plaintiff Jafry’s fraud allegations against Defendants Zoom and Moazez are premised on Jafry’s “approval of the loan” (Complaint, ¶¶12, 13, 24) and on the claim that Defendants were “dumping the company problems onto Plaintiff and keeping the good for the benefit of Defendants all while Plaintiff was liable for the $750,000.00 debt that was in essence a loan to Defendant.” (Id. at ¶¶15, 23). Defendant argues that Neither Zoom nor Moazez could have intended to defraud Jafry when Zoom consistently insisted that Jafry conduct his own due diligence to verify the Seller’s representations and seek the advice of professionals. [UMF No. 10, 23.] Defendant also argues that while Zoom’s agent, Ms. Vaziri, made the initial introduction to begin the SBA Loan application, Jafry remained solely responsible for providing the necessary information for loan approval. [UMF Nos. 13-17]. Also, as to justifiable reliance, Defendant argues that Jafry acknowledged that Zoom advised him, at minimum, six times that Zoom and its agents made no representations or warranties about the Seller’s business and encouraged Jafry to seek professional advice. (UMF No. 23).

		And, as to Breach of Fiduciary Duty, Defendant argues that Jafry executed both the Purchase Agreement and the Closing Instructions, each of which contains express clauses releasing Zoom from any liability flowing from the asset purchase transaction—and as such, no liability attaches. Having sustained its initial, substantive burden, the burden thus shifts to Plaintiff to create a triable issue of material fact. Instead of attempting to create triable issues of material fact, Plaintiff seeks a continuance pursuant to CCP§437c(h). CCP§437c(h) provides, "If it appears from the affidavits submitted in opposition to a motion for summary judgment or summary adjudication, or both, that facts essential to justify opposition may exist but cannot, for reasons stated, be presented, the court shall deny the motion, order a continuance to permit affidavits to be obtained or discovery to be had, or make any other order as may be just. The application to continue the motion to obtain necessary discovery may also be made by ex parte motion at any time on or before the date the opposition response to the motion is due." Plaintiff states in the Opposition that "this case involves the sale of a business, to which the office leasehold was transferred. The purchase agreement failed to mention the broker fee, which constitutes constructive fraud and a breach of fiduciary duty." [Opp page 2:23-25.] Plaintiff also argues, "At no time did Defendants disclose to Plaintiff the complete calculation, allocation, or total amount of broker fees, commissions, and side payments they received from the transaction (Declaration of Syed Jafry, ¶¶ 4-6)." However, nowhere in the Complaint is this new theory of liability pled. Rather, Plaintiff's fraud is based on, "It is Plaintiff's contention that Defendants had a scheme to defraud Plaintiff out of the $750,000 and also dump certain liabilities of Defendant onto Plaintiff. It is Plaintiff's contention that prior to the sale of the business, Defendants knew that he would continue to do business

		with the valuable clients, in the same location, to continue to work in the field of accounting and taxation." (Complaint¶23.) Additionally, "It is also Plaintiffs contention that he was used as a front in order to get a loan from the bank, and that Defendants austerely overstated, exaggerated, and inflated the value of the business to both the Plaintiff and the Bank, and also overstated the net worth of Plaintiff to the bank in order to complete the funding." (Complaint¶24.) As to Breach of Fiduciary Duty, Plaintiff succinctly pleads: 30) Defendants, as business brokers, and the sellers of business, were and are required to use their abilities to the benefit of Plaintiff and to refrain from abusing their positions of control, and not to favor their own interests at the expense of Plaintiff. Defendants violated their fiduciary duties to Plaintiff, including without limitation their duties of care, good faith, honesty and loyalty [Complaint ¶30.] That is, the gravamen of the complaint appears to be about Defendants overstating the value of the business. Nowhere in the Complaint does Plaintiff plead or refer to a failure to disclose broker fees, etc. A party opposing summary judgment may not advance an unpleaded legal theory to defeat the motion. Rather, the party should seek leave to amend its pleadings to raise the new theory before filing its opposition papers. [*Champlin/GEI Wind Holdings, LLC v. Avery* (2023) 92 CA5th 218, 224-225] Here, Plaintiff is attempting to continue the motion to obtain discovery on an unpleaded legal theory, almost two years after the Plaintiff initiated the lawsuit. Furthermore, Attorney Bakhos' Declaration in support of the request is deficient. The opposing party's declaration in support of a motion to continue the hearing should show the following: • Facts establishing a likelihood that controverting evidence may exist and why the information sought is essential to opposing the motion; ["Essential facts exist

		that are necessary to justify Plaintiff's opposition to Defendants' Motion for Summary Judgment, but which currently cannot be presented because Defendants have failed and refused to produce requested financial records and discovery regarding their actual fees, commissions, and total compensation collected in connection with the purchase and sale transaction of R & R Accounting Services." Bakhos Decl.¶3.] • The specific reasons why such evidence cannot be presented at the present time; ["To date, Defendants have failed to produce complete accounting records or ledger entries detailing the actual compensation, side payments, or dual commissions received from all parties to the transaction." Id.¶5c.] • An estimate of the time necessary to obtain such evidence; [No estimate provided.] • The specific steps or procedures the opposing party intends to utilize to obtain such evidence. [CCP § 437c(h); ["Plaintiff is actively preparing a Motion to Compel." Id.¶6.] What is clear is that Plaintiff did not serve his first set of discovery (as to an unpled theory of liability) until April 22, 2026, which was almost seven (7) months after Defendants' filed their Answer herein. Worse yet, Defendants argue in the Reply that Plaintiff had supplemental responses by August 3, 2026—that is, before filing the opposition. Plaintiff has failed to demonstrate diligence in obtaining discovery, and Plaintiff has filed to seek amendment to his Complaint to include these new theories of liability. As such, the Court GRANTS Defendants' Motion for Summary Judgment, and DENIES Plaintiff's request for a continuance. Defendants' evidentiary objections are sustained. *Defendants to give notice.*
111	Cummings vs. Kia America, Inc., 25-01500652	There are two motions on calendar: (1) Plaintiff Rosa Cummings' ("Plaintiff") Motion to Withdraw or Amend Deemed Admissions and (2) Defendant Kia America, Inc.'s ("Defendant") Motion for Summary Judgment. In Plaintiff's motion, she moves pursuant to Code of Civil Procedure section 2033.300. Defendant moves for summary judgment

1. Plaintiff's Motion to Withdraw or Amend Deemed Admissions

Plaintiff moves pursuant to Code of Civil Procedure section 2033.330 to withdraw and amend the admissions deemed admitted against her by the Court's April 2, 2026 order with respect to Defendant Kia America, Inc.'s ("Kia") Requests for Admission, Set One (Nos. 1–11), and (1) deeming Plaintiff's March 12, 2026, responses as her operative responses thereto; or (2) in the alternative, permitting Plaintiff to serve amended responses to the Requests for Admissions, Set One, within twenty (20) days of the Court's Order.

Code of Civil Procedure section 2033.300 states:

"(a) A party may withdraw or amend an admission made in response to a request for admission only on leave of court granted after notice to all parties.
(b) The court may permit withdrawal or amendment of an admission only if it determines that the admission was the result of mistake, inadvertence, or excusable neglect, and that the party who obtained the admission will not be substantially prejudiced in maintaining that party's action or defense on the merits.
(c) The court may impose conditions on the granting of the motion that are just, including, but not limited to, the following:
(1) An order that the party who obtained the admission be permitted to pursue additional discovery related to the matter involved in the withdrawn or amended admission.
(2) An order that the costs of any additional discovery be borne in whole or in part by the party withdrawing or amending the admission." (Code Civ. Proc., § 2033.300.)

Here, the Court finds that Plaintiff is entitled to relief from the facts deemed admitted pursuant to the Court's 04/02/2026 order. For the reasons explained below, the Motion is GRANTED.

The requests for admission at issue were deemed admitted by the Court on 04/02/2026 after the record presented to the Court reflected that Plaintiff failed to provide discovery and failed to oppose the motion.

		The evidence submitted in support of this motion shows that Plaintiff served responses to Request for Admission, Set One on 03/12/2026, which was before the 04/02/2026 hearing. Such responses, however, were not verified. Neither Defendant nor Plaintiff informed the Court that Plaintiff was attempting to provide responses. Plaintiff's counsel testifies that such responses were not provided earlier because Plaintiff's case was changing attorneys within the same firm, with her present handling attorney assuming "responsibility for this matter on or about June 1, 2026" and her prior counsel no longer with the firm starting in early April of 2026. (ROA 81, Declaration of Roy Enav, ¶ 3.) Plaintiff's counsel further testifies "the failure to serve timely verified responses was the result of inadvertence and oversight in the handling of the file by prior counsel, and not the product of any deliberate or tactical decision." (ROA 81, Declaration of Roy Enav, ¶ 8.) Moreover, Plaintiff's counsel testified "I am aware of no facts indicating that Plaintiff herself caused, directed, or contributed to the failure. To the contrary, the file reflects that Plaintiff promptly provided the information requested of her in order to prepare her responses." (Ibid.) Plaintiff served her verified responses to the Requests for Admission on June 10, 2026. (ROA 81, Declaration of Roy Enav, ¶ 9.) Under these circumstances, the Court finds that the admissions were the result of mistake, inadvertence, or excusable neglect. In addition, the Court finds that Defendant will not be substantially prejudiced in maintaining a defense on the merits. The Court acknowledges that Defendant already file a motion for summary judgment and are prejudiced to the extent that Defendant expended time and resources in order to prepare this motion. This prejudice, however, is not so substantial as to prevent a resolution on the merits. Defendant will be permitted to file another motion for summary judgment to the extent it wishes to do so. Given the above, the Motion is GRANTED. The Court's 04/02/2026 order deeming requests for admission admitted is VACATED.

		To the extent that the responses provided by Plaintiff on June 10, 2026 are not satisfactory to Defendant, Defendant is granted 45 days leave to file a motion to compel further, to be calculated from the date of this order. *Plaintiff to give notice.* Defendant's objections to the Roy Enav are OVERRULED. The Court will not rule on the objections to Plaintiff's declaration as the Court finds that the information contained in the Enav declaration supports the Court's decision to grant the motion. 2. Defendant's Motion for Summary Judgment Defendant's motion for summary judgment depends on facts deemed admitted in the Court's 04/02/2026 Minute Order deeming requests for admission admitted by Plaintiff. This order has been VACATED and therefore the requests for admission discussed and replied upon in the motion for summary judgment are no longer deemed admitted by Plaintiff. Pursuant to Code of Civil Procedure sections 437c, the separate statement shall only set forth material facts and there must be no triable issue as to any material fact presented in the separate statement. (Code Civ. Proc., § 437c, subd. (b) and Cal. Rules of Court, rule 3.1320, subd.(d)(1).) Accordingly, if one material fact is disputable, then the issue fails. Such is the case here since at least some of the "undisputed material facts" in support of each issue presented in the motion and separate statement rely upon the facts deemed admitted in the Court's 04/02/2026 Minute Order. The order deeming these facts admitted has been vacated and therefore the facts are no longer deemed admitted and are not "undisputed facts" that support Defendant's motion for summary judgment. As such, the Motion for Summary Judgment is DENIED WITHOUT PREJUDICE. *Plaintiff to give notice.*

112	Clay vs. Delgadillo, 23-01359983	*The August 20, 2026 Minute Order (ROA 363) contains the tentative ruling for the motion. The Court makes the following corrections to the August 20, 2026 Tentative Ruling:* *The second paragraph from the bottom on page 6 should read: The Court finds Request No. 6 to be overbroad as to time and therefore limits the request to September 2022 to October 2022.* *In the last paragraph on the bottom of page 6, the first two sentences should read: The Court finds Requests Nos. 15-17 and 19-23 to be overbroad as to time as the records sought are from October 2022, "to date." The Court limits these requests to documents from October 2022 to October 2023.*